

IN THE HIGH COURT OF DELHI AT NEW DELHI

CS(COMM) No. 340/2024

Date of Decision: 18-04-2024

Pharma Innovations Inc ... Plaintiff

VERSUS

Generic Meds Ltd ... Defendant

FACTS OF THE CASE:

1. Suit for patent infringement under Patents Act, 1970.

ISSUES:

1. Novelty and inventive step of pharmaceutical formulation.

REASONING & DECISION:

Defendant failed to prove invalidity of suit patent.

RATIO DECIDENDI:

Prima facie validity of granted patent warrants interim injunction.

DECISION:

Interim injunction granted restraining manufacturing.